

24NNCV04346 24NNCV04346

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-08-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CV%2C08%2F04%2F2026

Source SHA-256: 36d7fe26d08be0bc7cafa6c69fad9177c6f24abb0988e2a53af623df6a6ea9ab

Case Number: 24NNCV04346 Hearing Date: August 4, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

HECTOR MANOLO ESCOBAR, an

individual; ALICIA ESCOBAR, an individual,

Plaintiffs,

vs.

AMERICAN HONDA MOTOR CO., INC.,

and DOES 1 through 10, inclusive,

Defendants.

Case

No.:

24NNCV04346

Hearing

Date:

August

4, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION FOR LEAVE TO AMEND COMPLAINT

MOVING PARTIES:

Plaintiffs Manolo Escobar and

Alicia Escobar

RESPONDING PARTY: Defendant American Honda Motor Co., Inc.

The Court

considered the moving papers, opposition, and reply filed in connection with the instant motion.

BACKGROUND

This is a Song-Beverly
Consumer Warranty action.

On September 17, 2024,
Plaintiffs Manolo Escobar and Alicia Escobar (collectively, "Plaintiffs") filed their complaint for restitution and damages against Defendant American Honda Motor Co., Inc. ("Defendant").

On July 13, 2026,
Plaintiffs filed the instant motion for leave to amend complaint.

On July 22, 2026,
Defendant filed an opposition.

On July 28, 2026,
Plaintiff filed a reply.

LEGAL STANDARD

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a)(1).) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

DISCUSSION

Plaintiffs move for leave to amend the Complaint to add Sierra Honda Monrovia Hon, LLC dba Sierra Honda of Monrovia (“Sierra Honda”) as a defendant and conform the pleading to facts learned during discovery.

Sierra Honda is the seller-creditor pursuant to a retail installment sales contract for an aftermarket alarm system sold as an add-on product for Plaintiffs’ vehicle. (Yadegari Decl., ¶ 3, Exh. 1.) Plaintiffs’ vehicle experiences defects associated with the alarm and starting systems. (Yadegari Decl., ¶ 4.) On June 24, 2026, Plaintiffs deposed Sierra Honda’s person most qualified (“PMQ”) regarding the alarm system. (Yadegari Decl., ¶ 6.) Sierra Honda’s PMQ testified that the alarm system sold by Sierra Honda may have caused the defect with Plaintiffs’ vehicle. (Yadegari Decl., ¶ 7, Exh. 2.) Counsel states that the Complaint does not name Sierra Honda because Plaintiffs did not believe the alarm system caused the defect at the time of filing. (Yadegari Decl., ¶ 9.) Plaintiffs asked Defendant to stipulate to amendment, but Defendant did not respond as of the time of filing this motion. (Yadegari Decl., ¶ 10.) Plaintiffs seek to add Sierra Honda as a defendant and allege claims against Sierra Honda for breach of express warranty, breach of implied warranty, and failure to repair in a good and workmanlike manner, and to add a corresponding claim for failure to repair in good and workmanlike manner against Defendant. (Yadegari Decl., ¶ 11.) Plaintiffs’ counsel attests that they did not learn of the facts giving rise to the amended pleading until June 24, 2026, when Sierra Honda’s PMQ testified. (Yadegari Decl., ¶ 13.)

In opposition, Defendant argues the motion should be denied for undue delay and prejudice to Defendant. The Court agrees.

Although plaintiffs argue otherwise, the aftermarket installation of the alarm is not new information. While court must liberally apply policies permitting amendment at any time, unwarranted delay without satisfactory explanation or excuse for failure to seek leave earlier is grounds for denial. (Duchrow v. Forrest (2013) 215 Cal.App.4th 1359, 1377; P&D Consultants, Inc. v. City of Carlsbad (2010) 190 Cal.App.4th 1332, 1345.) In considering a motion for leave to amend, courts must consider the conduct of the moving party and delay in presenting the amendment. (W&W El Camino Real, LLC v. Fowler (2014) 226 Cal.App.4th 263, 270.) As the Court noted in its order denying Plaintiffs' ex parte application to continue trial date on July 14, 2026, Plaintiffs installed the alarm system at the time of purchase in 2022 and have been on notice of these issues since then. The sales contract for Plaintiffs' vehicle from May 1, 2022, identifies the alarm system from Sierra Honda. (Chang Decl., ¶ 4, Exh. A.) Similar, repair orders produced by Sierra Honda in response to subpoenas in this action show that Plaintiffs visited the dealership for aftermarket alarm issues multiple times, from October 25, 2022 to March 25, 2025. (See Chang Decl., ¶ 5, Exhs. B-F.) Having known about the aftermarket installation of the alarm since the time of purchase in 2022, the Court finds that Plaintiffs substantially delayed in presenting the amendment.

Further, courts can properly deny leave to amend if the proposed amendment causes probable prejudice to the adverse party. (Magpali v. Farmers Group (1996) 48 Cal.App.4th 471, 487.) Adding new parties shortly before trial constitutes prejudice where it would necessitate additional discovery and further investigation. (M&F Fishing, Inc. v. Sea-Pac Ins. Managers, Inc. (2012) 202 Cal.App.4th 1509, 1536-1537.) Notably, Plaintiffs took more than a year after noticing Sierra Honda's deposition to take the deposition, and trial is less than thirty days from the hearing on this motion. Defendant's counsel declares that if Sierra Honda is added as a party to this litigation, further discovery, depositions, and delay of trial will be required. (Chang Decl., ¶ 10.) Therefore, the Court finds considerable prejudice to Defendant if the Court were to grant leave to amend to add Sierra Honda as a defendant in this action.

Accordingly, the Court denies Plaintiffs' motion for leave to amend.

CONCLUSION

Based on the foregoing, the Court DENIES Plaintiffs Manolo Escobar and Alicia Escobar's motion for leave to amend complaint.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 4, 2026

Sarah
J. Heidel

Judge
of the Superior Court